



Econsult Africa

ECONOMIC CONSULTING SERVICES LIMITED

FORECAST ARENA

TERMS OF USE

Economic Intelligence • Sentiment Aggregation • Research Participation • African Markets

Effective Date: 4 April 2026

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PLEASE READ THESE TERMS OF USE CAREFULLY BEFORE ACCESSING OR USING THE FORECAST ARENA PLATFORM. BY CREATING AN ACCOUNT, ACCESSING THE PLATFORM, SUBMITTING A FORECAST, OR OTHERWISE USING ANY FEATURE OF THE PLATFORM, YOU ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREE TO BE BOUND BY THESE TERMS IN THEIR ENTIRETY. IF YOU DO NOT AGREE, YOU MUST NOT ACCESS OR USE THE PLATFORM.

These Terms of Use ("**Terms**") constitute a legally binding agreement between you ("**User**," "**you**," or "**your**") and **ECONSULT AFRICA ECONOMIC CONSULTING SERVICES LIMITED**, a company incorporated under the laws of the Republic of Kenya ("**Econsult Africa**," "**we**," "**us**," or "**our**"), governing your access to and use of the Forecast Arena platform, including all associated websites, mobile interfaces, application programming interfaces, data feeds, and ancillary services (collectively, the "**Platform**"). The Platform is designed to serve users across the African continent and globally, with Kenyan law as the governing legal framework.

1. DEFINITIONS AND INTERPRETATION

The following defined terms apply throughout these Terms. Precise definitions are essential to the proper legal characterisation of this Platform and the services it provides. Capitalised terms not otherwise defined herein have their natural meaning.

1.1 "Econsult Africa," "we," "us," or "the Company" means Econsult Africa Economic Consulting Services Limited, a company incorporated under the Companies Act (Cap. 486, Laws of Kenya), and all affiliated entities, officers, directors, employees, agents, contractors, and licensors.

1.2 "Platform" means the Forecast Arena website, mobile applications, APIs, data products, and all related digital infrastructure accessible at econsult.africa and any successor domains, operating as a crowd-sourced macroeconomic forecasting and event-contract derivatives intelligence platform.

1.3 "User," "you," or "your" means any individual or entity that accesses, registers on, or uses the Platform in any capacity, from any jurisdiction.

1.4 "Forecast Question" means a structured, binary or multi-outcome event contract question published by Econsult Africa relating to a defined, objectively verifiable real-world macroeconomic, geopolitical, financial, or social outcome, analogous in structure to event-based derivative contracts as recognised under the Commodity Exchange Act (United States) and the Capital Markets Act (Cap. 485A, Laws of Kenya). Forecast Questions concern observable, externally verifiable outcomes determined entirely outside the Platform.

1.5 "Forecast Submission" means a User's voluntary expression of an economic expectation, probability assessment, or directional view submitted in response to a Forecast Question, constituting both an act of research participation and the exercise of an event-contract position analogous to a derivative instrument under applicable capital markets frameworks.

1.6 "Conviction Commitment" means the optional, voluntary allocation of capital by a User to a submitted Forecast Submission, serving as a credibility and conviction signal. A Conviction Commitment functions as consideration placed on an event-contract position — not a wager, bet, stake, or game of chance. It is a capital markets instrument whose informational value derives from the participant's genuine belief in an analytically reasoned outcome.

1.7 "Sentiment Pool" means the aggregate of all Conviction Commitments across all positions on a given Forecast Question, held by Econsult Africa for purposes of calculating and distributing Accuracy-Based Recognition upon Resolution. The Sentiment Pool is parimutuel in nature, funded entirely by participants; Econsult Africa neither supplements it nor underwrites it.

1.8 "Accuracy-Based Recognition" or "Sentiment Return" means the distribution made to participants whose Forecast Submission matched the resolved outcome, calculated proportionally from the Sentiment Pool after deduction of the Platform Fee. This is a participation return linked to demonstrated analytical accuracy — not an investment return, gambling prize, or winnings under any gaming statute.

1.9 "Resolution" means the determination, by reference to objective, externally verifiable data from a designated Resolution Source, of the verified outcome of a Forecast Question. Econsult Africa does not determine, influence, or adjudicate outcomes.

1.10 "Resolution Source" means the objective, publicly verifiable data source designated to determine the outcome of a Forecast Question — such as the Kenya National Bureau of Statistics (KNBS), Central Bank of Kenya (CBK), International Monetary Fund, World Bank, African Development Bank, or equivalent authoritative institutions.

1.11 "Platform Fee" means the service charge (currently 3.5%) on Conviction Commitments and Accuracy-Based Recognition distributions. The Platform Fee is fixed regardless of which outcome resolves — it is an infrastructure

service charge analogous to an exchange transaction fee, not a house margin or bookmaker spread.

1.12 "Consensus Price" means the real-time implied probability of a given outcome, calculated by the Automated Probability Mechanism (APM) from the distribution of participant activity. The Consensus Price is crowd-determined and is never set, adjusted, or manipulated by Econsult Africa.

1.13 "Automated Probability Mechanism" ("APM") means the algorithmic formula: implied probability = Conviction Commitments for this outcome ÷ total Conviction Commitments across all outcomes, bounded between 0.05 and 0.95. The APM is a passive function; Econsult Africa exercises no discretion over its outputs.

1.14 "Wallet" means the internal ledger account reflecting a User's available balance, funded by deposits and credited with Accuracy-Based Recognition, from which Conviction Commitments are optionally made.

1.15 "Aggregated Outputs" means consensus probability distributions, sentiment indicators, expectation indices, and other statistical outputs derived from aggregation and anonymisation of User participation data.

1.16 "Event-Contract Derivative" means a binary or scalar financial instrument whose value is contingent upon the verified outcome of an objectively defined real-world event — the category of instrument under which Forecast Submissions are characterised for regulatory and legal purposes, consistent with the Commodity Exchange Act (US) framework and the Capital Markets Act (Cap. 485A, Laws of Kenya).

1.17 "CMA Regulatory Sandbox" means the Capital Markets Authority of Kenya's Regulatory Sandbox Programme established pursuant to the CMA Regulatory Sandbox Policy Guidance Note (2019), which permits fintech companies and capital markets innovators to live-test innovative products and services under CMA oversight prior to full market launch.

1.18 "User Content" means any commentary, rationale, analysis, or other content submitted by a User through the Platform.

1.19 "Participation Rules" means the specific rules and parameters published for each Forecast Question, which form part of these Terms.

1.20 Interpretation. Headings are for convenience only. "Including" means "including without limitation." Singular includes plural and vice versa. References to statutes include amendments and successor legislation. Where conflict exists between these Terms and Participation Rules for a specific Forecast Question, the Participation Rules prevail for that Question only.

2. PLATFORM IDENTITY, LEGAL CHARACTERISATION, AND REGULATORY POSITIONING

This Section is integral to these Terms and constitutes a material part of the basis of the bargain between the User and Econsult Africa. Users must read and understand it before participating in any Forecast.

2.1 Nature of the Platform

Econsult Africa operates Forecast Arena as a crowd-sourced macroeconomic forecasting and event-contract intelligence platform. Participants submit analytically grounded probability assessments on defined macroeconomic and geopolitical outcomes affecting African markets. The resulting aggregated output — a real-time probability signal reflecting collective informed opinion — constitutes an economic intelligence product of independent commercial and research value. The Platform is designed to advance economic literacy, expectations transparency, and public-interest market intelligence across the African continent and beyond.

2.2 Research and Economic Intelligence Rationale

Crowd-sourced economic forecasting is a well-established methodology employed by leading academic institutions — including the University of Iowa (Iowa Electronic Markets, est. 1988), Oxford University, and the Brookings Institution — as well as by central banks and international financial institutions including the IMF and World Bank. The Platform applies this methodology at scale to generate probability-weighted consensus indicators that contribute to informed public discourse, research, policy analysis, and economic decision-making across African markets.

2.3 Forecast Arena Is Not a Gambling or Betting Product — Definitive Characterisation

Forecast Arena is **not** a gambling product, betting service, gaming activity, lottery, sportsbook, bookmaker, or casino. The following features, taken individually and collectively, establish this characterisation beyond reasonable doubt:

(i) Outcomes are externally determined and objectively verifiable. Every Forecast Question resolves by reference to data published by recognised, authoritative external sources — national statistical agencies, central banks, international institutions. Outcomes are not random, not algorithmically generated, and are not determined by any mechanism on or controlled by the Platform. This is the foundational distinction between an event-contract derivative and a game of chance.

(ii) Skill, not chance, is the dominant determinant of accuracy. A trained economist, sector specialist, or informed analyst is systematically and demonstrably more likely to submit an accurate Forecast than an uninformed participant. Under the prevailing legal standards of virtually every common law jurisdiction — including Kenya, the United Kingdom, and the United States — the predominance of skill over chance is the decisive factor distinguishing lawful analytical participation from regulated gambling.

(iii) Econsult Africa has no financial interest in any outcome. Unlike a bookmaker, Econsult Africa does not take the opposite side of any User position, does not set odds, does not act as a counterparty, and does not profit more when Users are wrong. The Platform Fee is identical regardless of which outcome resolves. Econsult Africa's revenue is entirely outcome-independent — a structural impossibility for any genuine gambling operator.

(iv) The parimutuel structure is identical to commodity and financial market pools. All Conviction Commitments are pooled and distributed among accurate participants on a parimutuel basis — the same structural model used by futures exchanges, stock markets, mutual funds, and commodity pools globally. This structure is universally distinguished from casino gambling and bookmaking under the laws of common law jurisdictions.

(v) Participation without monetary commitment is fully valid. A Conviction Commitment is entirely optional. Users may submit Forecasts — contributing fully to Aggregated Outputs and building their accuracy record — without committing any capital. A gambling product that permits participation without a stake is a definitional impossibility; the optional nature of the Conviction Commitment confirms this Platform is analytically, not recreationally, motivated.

(vi) The Conviction Commitment is a credibility-signalling mechanism, not a wager. Information economics theory and prediction market literature establish that unpriced opinions carry no informational value. Capital commitment signals genuine conviction, improving the quality of the Platform's economic intelligence output. This function is a research design mechanism with deep intellectual precedent — not entertainment, sport, or chance-taking.

2.4 Legal Category: Event-Contract Derivatives, Not Gaming

Forecast Submissions are event-contract derivatives — binary or scalar financial instruments whose value is contingent upon the verified outcome of an objectively defined real-world event. This is a recognised and regulated instrument category under capital markets frameworks, not a gaming or gambling product. The following regulatory precedents establish and confirm this characterisation:

(a) United States — CFTC Commodity Exchange Act Framework. Under the Commodity Exchange Act (CEA) of the United States, event-based contracts on economic, political, and real-world outcomes are classified as *derivatives* — not gambling — and fall under the exclusive jurisdiction of the Commodity Futures Trading Commission (CFTC). This classification means federal derivatives law, not state gaming law, governs such instruments. The CFTC has confirmed this position through regulatory action and formal designation.

(b) The Polymarket US Precedent — CFTC Designation as a Designated Contract Market (DCM). Polymarket US (operated by QCX LLC) is a CFTC-regulated **Designated Contract Market (DCM)** — the same regulatory category as the Chicago Mercantile Exchange (CME) and the Intercontinental Exchange (ICE), the world's largest regulated futures exchanges. A DCM designation is the most rigorous category of exchange recognition under US federal law, subjecting the platform to 23 Core Principles under the CEA governing market surveillance, participant protection, anti-manipulation controls, and transparent clearing. Polymarket's DCM designation in November 2025 constitutes a formal, binding regulatory confirmation by a G7 financial regulator that crowd-sourced event-contract platforms — platforms structurally identical in design to Forecast Arena — are *regulated derivatives markets*, not gambling services. Kalshi, a competing event-contract platform, similarly holds DCM status, confirming this is an established and recognised regulatory category, not a one-off determination. Econsult Africa considers this body of CFTC regulatory precedent directly instructive as to the appropriate characterisation of Forecast Arena.

(c) Forecast Arena Is in the Same Regulatory Category as Polymarket US — and Is Seeking Its African Equivalent. Forecast Arena operates on the same structural and conceptual foundations as Polymarket US: event-contract positions on externally verified macroeconomic outcomes, parimutuel pooling with no house counterparty, transparent pricing mechanics, skill-based accuracy incentives, and a primary information product (aggregated probability signals). Econsult Africa's position is that Forecast Arena is properly characterised as an **event-contract derivatives platform** subject to capital markets regulation — not gaming regulation — and is not within the scope of the Gambling Control Act, 2025 (Kenya) or any equivalent gaming statute. In Kenya, the natural regulatory home for a platform of this character is the **Capital Markets Authority (CMA)**, which is mandated under the Capital Markets Act (Cap. 485A) to regulate and develop orderly, fair, and efficient capital markets, including the introduction of innovative financial instruments. Econsult Africa is actively pursuing formal authorisation through the **CMA Regulatory Sandbox Programme** — established by the CMA under its Regulatory Sandbox Policy Guidance Note (2019) — to live-test and build Forecast Arena as a regulated event-contract derivatives platform within the Kenyan and broader African regulatory architecture. The CMA

Sandbox has already admitted and graduated innovative capital markets products — including a financial crowdfunding platform and a mobile-based collective investment scheme — demonstrating its mandate and capacity to accommodate novel, analytically-grounded financial instruments of exactly this type. Econsult Africa will update these Terms to reflect any CMA regulatory determination, sandbox admission, or formal licensing outcome.

(d) Other Jurisdictional Precedents. The regulatory distinction between event-contract derivatives and gambling is recognised across multiple major jurisdictions: the Financial Conduct Authority (FCA) of the United Kingdom distinguishes prediction markets and financial derivatives from regulated gambling; the Iowa Electronic Markets (est. 1988) operate legally as academic derivatives markets under CFTC no-action relief; the Brookings Institution and IMF use prediction market data as economic forecasting tools. African financial regulatory bodies, including the CMA Kenya, are familiar with and have frameworks for innovative capital markets instruments of this nature.

(e) The Platform Fee Is an Exchange Transaction Fee, Not a House Edge. A bookmaker's margin is a spread designed to guarantee profit from losing bettors. The Platform Fee is a flat, transparent infrastructure charge identical in economic function to a brokerage commission or exchange transaction fee — covering payment processing, editorial research, compliance, data systems, and platform engineering. It is identical regardless of which outcome resolves. Econsult Africa's revenue is entirely outcome-independent — a structural characteristic that definitively distinguishes this Platform from any gambling or bookmaking operation.

2.5 Regulatory Engagement Commitment

Econsult Africa is committed to proactive, transparent regulatory engagement. This includes: (a) submission of a formal application to the CMA Regulatory Sandbox Programme to obtain supervised live-testing authorisation for Forecast Arena's event-contract derivatives framework; (b) engagement with the CMA to develop an appropriate regulatory framework for event-contract platforms in Kenya, drawing on the CFTC DCM framework as instructive international precedent; (c) cooperation with any regulatory review, enquiry, or determination by competent Kenyan or African regulatory authorities; and (d) updating these Terms promptly to reflect any regulatory determination, sandbox admission, or licensing outcome.

2.6 No Advice; No Guarantees

Nothing on the Platform constitutes financial, investment, legal, tax, accounting, or any other form of regulated professional advice. Consensus Prices are crowd-generated probability signals — not recommendations. Any reliance on Platform outputs to inform decisions is at your own risk. Econsult Africa is not a licensed financial adviser, investment manager, broker, or regulated financial institution in any jurisdiction.

2.7 African Market Positioning

While Econsult Africa is incorporated in Kenya and these Terms are governed by Kenyan law, the Platform is designed to serve users and generate economic intelligence across the African continent, including Kenya, Nigeria, Ghana, Tanzania, Uganda, Rwanda, Ethiopia, South Africa, Senegal, Cameroon, and Ivory Coast. Where features are made available in jurisdictions other than Kenya, Econsult Africa will take reasonable steps to ensure compliance with applicable local laws. Users in jurisdictions outside Kenya are responsible for satisfying themselves as to the legality of Platform access in their respective jurisdictions.

3. ACCEPTANCE, ADDITIONAL POLICIES, AND AUTHORITY

3.1 Clickwrap acceptance. By creating an account, accessing the Platform, submitting a Forecast Submission, or engaging with any monetarily enabled feature, you confirm your unconditional acceptance of these Terms. This constitutes a legally binding acceptance under the Kenya Information and Communications Act (Cap. 411A) and the Law of Contract Act (Cap. 23, Laws of Kenya).

3.2 Incorporated policies. These Terms incorporate: (a) our Privacy Notice (compliant with the Data Protection Act, 2019, Kenya); (b) Participation Rules for each Forecast Question; (c) any community guidelines posted on the Platform; and (d) applicable third-party payment service provider terms.

3.3 Organisational authority. If you use the Platform on behalf of any organisation, you represent that you have full authority to bind that organisation to these Terms.

3.4 No reliance. You confirm you have not relied upon any representation by Econsult Africa except as expressly set out herein.

4. ELIGIBILITY AND ACCESS

4.1 Age. You must be at least eighteen (18) years of age to create an account, submit a Forecast Submission, or make a Conviction Commitment. In jurisdictions where a higher threshold applies, that threshold governs.

4.2 Jurisdictional eligibility. Not all features are available in all jurisdictions. Econsult Africa reserves the right to restrict, geofence, or prohibit access in any territory where doing so would create legal, regulatory, sanctions, AML/CTF, tax, or operational exposures.

4.3 User responsibility for local compliance. You are solely responsible for determining that your use of the Platform is lawful in your jurisdiction and consistent with applicable professional, employer, and regulatory obligations. Econsult Africa does not provide legal advice on the applicability of any laws to your participation.

4.4 Right to refuse or restrict. We may decline to open an account or restrict access where we reasonably determine that access creates risk to Platform integrity, data integrity, compliance posture, or User safety.

4.5 Regulated professionals. If you are a regulated professional, you represent that your participation complies with all applicable professional codes, ethics policies, and institutional rules.

5. ACCOUNT REGISTRATION AND SECURITY

5.1 Accurate information. You agree to provide accurate, complete, and current registration information and to promptly update it as necessary. Providing false information constitutes a material breach and may result in account termination.

5.2 Single account policy. Unless expressly approved in writing, each individual or legal entity may maintain only one account. Multi-accounting is strictly prohibited and constitutes an integrity breach.

5.3 Account security. You are responsible for maintaining the confidentiality of your credentials and all activity through your account. Notify us promptly of any suspected unauthorised access.

5.4 Corporate and institutional accounts. If you register on behalf of a legal entity, you warrant full authority to bind that entity to these Terms.

6. FORECAST QUESTIONS AND RESEARCH PARTICIPATION MECHANICS

Forecast Questions

6.1 Structure. Econsult Africa publishes Forecast Questions relating to defined macroeconomic, geopolitical, financial, and social outcomes across African and global markets. Each Forecast Question is accompanied by Participation Rules specifying: the outcome definition; the submission window; the resolution date and time; the designated Resolution Source(s); and edge-case protocols.

6.2 Objective resolution. Outcomes are determined exclusively by reference to objective, externally verifiable data published by the designated Resolution Source(s). Econsult Africa does not determine, influence, or adjudicate economic outcomes.

6.3 Free forecast submission. Submission of a Forecast without a Conviction Commitment is entirely valid and free of charge. It contributes to the Platform's Aggregated Outputs and the User's accuracy-based reputation score.

Conviction Commitments — Event-Contract Positions

6.4 Purpose and characterisation. Where enabled for a specific Forecast Question and jurisdiction, the Platform permits Users to make a Conviction Commitment as an event-contract position that enhances the informational quality and credibility of their Forecast Submission. Conviction Commitments are priced at the Consensus Price prevailing at the time of commitment, with a minimum of USD 0.95. This mechanism is designed to encourage honest signal revelation and substantive engagement with macroeconomic data. It is not offered as a game of chance, wagering entertainment, speculative trading opportunity, or any product whose primary purpose is risk-taking for financial reward.

6.5 No leverage; no borrowing; no credit. Conviction Commitments are made only with funds available in a User's Wallet. The Platform does not offer borrowing, leverage, margin, credit extension, or financing.

6.6 Non-transferability; personal participation. Forecast Submissions and Conviction Commitments are personal to the User account. They are non-transferable, non-assignable, and may not be resold or otherwise disposed of on- or off-platform. There is no secondary market or order book.

6.7 Position management. Users who have made a Conviction Commitment may sell their position back to the Platform at the prevailing Consensus Price via the Position Management interface while the Forecast Question remains open. A Platform Fee applies to all position sales. Econsult Africa guarantees liquidity for all valid position sales while the question remains open.

6.8 Participation caps and controls. Econsult Africa may apply participation caps per Forecast Question, per time period, per User, per User category, or per jurisdiction to protect Users and ensure compliance with applicable law.

Accuracy-Based Recognition — Mechanics

6.9 Parimutuel distribution. Upon Resolution, Accuracy-Based Recognition is distributed from the Sentiment Pool to participants whose Forecast Submission matched the resolved outcome. Distribution formula:

Gross Return = participant's shares × USD 1.00, where shares = Conviction Commitment ÷ Consensus Price at entry

Scale Factor = $\min(1.0, \text{Sentiment Pool} \div \text{Sum of all Gross Returns for accurate participants})$

Net Recognition = Gross Return × Scale Factor × (1 – Platform Fee Rate)

6.10 Self-sustainability guarantee. The parimutuel mechanism guarantees that total distributions will never exceed total capital committed. Econsult Africa does not supplement or underwrite Accuracy-Based Recognition from its own funds. You may receive no recognition and may lose some or all of committed capital.

6.11 No guarantee of recognition. Econsult Africa does not guarantee any Accuracy-Based Recognition. You should not participate with amounts you cannot afford to lose.

7. PLATFORM FEES AND CHARGES

7.1 Platform Fee amount. Econsult Africa charges a Platform Fee (currently 3.5%) on: (a) the total value of each Conviction Commitment processed; (b) the gross value of each position sale under Section 6.7; and (c) the gross Accuracy-Based Recognition distributed to each Registered Outcome Participant.

7.2 Characterisation. The Platform Fee is an operational service charge — an exchange transaction fee — covering infrastructure, editorial research, compliance, data processing, payment handling, and engineering. It is not a bookmaker margin, house edge, or risk-based pricing mechanism. It is fixed and identical regardless of which outcome resolves.

7.3 Transparency. The Platform Fee applicable to any transaction is displayed to the User before confirmation.

7.4 Tax responsibility. You are responsible for any taxes, duties, or levies applicable to your use of the Platform in your jurisdiction. Econsult Africa may request tax-related information and may withhold or report where required by applicable law.

7.5 Fee amendments. Econsult Africa may amend the Platform Fee on reasonable notice. Amendments shall not apply retroactively to Conviction Commitments already submitted.

8. PAYMENTS, WALLET, AND FUNDS-FLOW ARCHITECTURE

8.1 Wallet funding and withdrawals. Users may deposit funds via supported payment methods including M-Pesa and debit/credit card (facilitated by licensed third-party processors such as Paystack). The Platform operates in USD; deposits and withdrawals are processed in local currencies at exchange rates determined by the payment processor. Econsult Africa is not responsible for exchange rate fluctuations.

8.2 Not a deposit; no stored value. Wallet balances are internal ledger entries — not bank deposits, savings, stored value, or e-money. The Platform does not operate a wallet or e-money issuance scheme under the National Payment System Act, 2011 (Kenya). Econsult Africa does not pay interest on Wallet balances.

8.3 Third-party payment providers; no custody. Payment processing is facilitated by licensed third-party providers. Econsult Africa does not hold, store, or process User funds as a payment service provider, custodian, or trustee, unless expressly stated otherwise.

8.4 Withdrawal processing. Users may withdraw available Wallet balances at any time to a registered mobile money or bank account. Processing may take up to five (5) business days. Econsult Africa may conduct KYC and AML checks before processing withdrawals.

8.5 Compliance holds. Econsult Africa may hold, delay, reverse, or refuse transfers where required for verification, compliance review, fraud detection, legal obligations, or dispute handling.

8.6 Chargebacks and reversals. If a payment is reversed or charged back, Econsult Africa may cancel affected Forecast Submissions, reduce pending Accuracy-Based Recognition, and suspend your account pending review.

8.7 Dormant accounts. Accounts inactive for twenty-four (24) consecutive months may be subject to a dormancy review. Econsult Africa will make reasonable efforts to notify Users before taking any action.

8.8 No interest. Econsult Africa does not pay interest on Wallet balances, Conviction Commitments, or amounts pending distribution.

9. USER RISK ACKNOWLEDGEMENTS AND VOLUNTARY PARTICIPATION

Important: Making a Conviction Commitment involves the risk of financial loss. You should only commit capital that you can afford to lose entirely. Past forecast accuracy is not indicative of future results.

9.1 Skill-based nature. Economic forecasting requires analytical skill, rigorous engagement with macroeconomic data, informed judgment, and continuous learning. Notwithstanding skill, outcomes are inherently uncertain and may be affected by policy changes, exogenous shocks, data revisions, and factors beyond any participant's foresight.

9.2 No guarantee. Econsult Africa does not guarantee Accuracy-Based Recognition. You may receive no recognition and may lose some or all of committed capital. The Platform is designed to contribute to and benefit from collective economic intelligence — not as a vehicle for financial gain.

9.3 Voluntary participation. Participation is entirely voluntary. You should not participate with amounts you cannot afford to lose.

9.4 No reliance on Platform outputs. You agree not to treat the Platform, its Aggregated Outputs, or Consensus Prices as financial, investment, legal, tax, or professional advice or as a substitute for independent professional counsel.

9.5 Jurisdictional compliance. You represent that: (a) you have assessed whether your participation is lawful in your jurisdiction; (b) your participation complies with all applicable professional and regulatory obligations; and (c) you will cease using the Platform if your participation becomes unlawful.

10. RESOLUTION SOURCES, DATA INTEGRITY, AND FINALITY

10.1 Objective Resolution Sources. Each Forecast Question designates one or more objective Resolution Sources — official publications of national statistics agencies, central banks, international institutions, or other verifiable public data sources.

10.2 First-publication rule. Unless Participation Rules state otherwise, resolution relies on the first publication by the designated Resolution Source satisfying the Forecast Question criteria. Subsequent data revisions generally do not retroactively alter a resolved outcome.

10.3 Disputes regarding Resolution. Disputes must be submitted to legal@econsult.africa within fourteen (14) days of the Resolution announcement, with supporting evidence. Econsult Africa's editorial team will conduct a review. The outcome is final and binding, subject to manifest error.

10.4 Delays, force majeure, and alternative resolution. If a Resolution Source delays publication, changes methodology, becomes unavailable, or publishes materially inconsistent data, Econsult Africa may: (a) defer resolution; (b) designate a comparable alternative source; (c) revise the resolution method; or (d) cancel the Forecast Question and unwind affected submissions.

10.5 Finality. Subject to manifest error, Econsult Africa's determination of outcomes and Accuracy-Based Recognition is final and binding for Platform purposes.

10.6 Manifest error. Econsult Africa may correct a determination where it identifies a clear and material error. No claim for loss from a corrected manifest error shall arise against Econsult Africa.

11. PLATFORM INTEGRITY, PROHIBITED CONDUCT, AND ENFORCEMENT

11.1 Core integrity principle. Forecast Arena is an economic research instrument and economic intelligence asset. The integrity of its data, analytics, and Aggregated Outputs depends on honest, independent, and analytically grounded participation. Manipulation of forecasts, consensus indicators, or resolution processes may constitute a criminal offence under the Computer Misuse and Cybercrimes Act, 2018 (Kenya).

11.2 Prohibited conduct. Without limitation, the following is prohibited:

- (a) Using bots, automated scripts, or programmatic tools to create accounts, submit forecasts, or influence consensus indicators, except where expressly authorised through a documented API programme;
- (b) Multi-accounting, nominee participation, proxy participation, or account sharing;
- (c) Collusion, coordinated manipulation, wash participation, or any attempt to mislead Users or distort Aggregated Outputs;
- (d) Fraud, identity misrepresentation, provision of false information, or use of stolen or unauthorised payment instruments, contrary to the Penal Code (Cap. 63, Laws of Kenya);
- (e) Attempting to influence, corrupt, tamper with, or obstruct Resolution Sources;
- (f) Exploiting software bugs, vulnerabilities, or security flaws, or attempting to reverse engineer or circumvent access controls, contrary to the Computer Misuse and Cybercrimes Act, 2018 (Kenya);
- (g) Harassment, hate speech, doxxing, threats, defamation, or submission of unlawful content;
- (h) Using the Platform in connection with money laundering, terrorism financing, sanctions evasion, or any illicit financial activity, contrary to the Proceeds of Crime and Anti-Money Laundering Act, 2009 (amended 2023);
- (i) Scraping, copying, redistributing, selling, or commercially exploiting Platform data without express written permission;
- (j) Any activity that would expose Econsult Africa to regulatory, reputational, legal, or operational risk.

11.3 Monitoring and investigation. Econsult Africa may monitor Platform activity for integrity and compliance purposes. You agree to cooperate with any reasonable investigation in good faith.

11.4 Enforcement actions. Econsult Africa may impose: warnings; participation limits; feature restrictions; cancellation of Forecast Submissions; reversal or clawback of Accuracy-Based Recognition; temporary or permanent account suspension; account termination; forfeiture of Wallet balances where authorised; and referral to regulatory authorities.

12. IDENTITY VERIFICATION, AML/CTF, AND SANCTIONS COMPLIANCE

Proceeds of Crime and Anti-Money Laundering Act, 2009 (amended 2023) | Prevention of Terrorism Act, 2012 | Financial Reporting Centre Act, 2012 (Kenya)

12.1 Verification. Econsult Africa may require KYC identity verification at account creation and on an ongoing basis, including enhanced due diligence (EDD) depending on feature access, transaction volume, and applicable legal obligations under POCAMLA (2009, amended 2023) and the Financial Reporting Centre Act, 2012 (Kenya).

12.2 Source-of-funds inquiries. Econsult Africa may request documentation regarding source of funds and source of wealth where required by applicable AML/CTF obligations.

12.3 Sanctions and restricted persons. You represent and warrant that you are not: (a) listed on any applicable sanctions or restricted-party list; (b) located in or ordinarily resident in a comprehensively sanctioned jurisdiction; or (c) acting on behalf of any sanctioned person or entity.

12.4 Suspicious activity reporting. Where required by law, Econsult Africa will file Suspicious Transaction Reports with the Financial Reporting Centre of Kenya and may freeze or restrict any transaction or account while reviews are ongoing.

12.5 Record retention and regulatory cooperation. Econsult Africa retains records for not less than seven years under POCAMLA and cooperates with lawful requests from regulators, courts, and law enforcement in Kenya and other jurisdictions.

13. DATA RIGHTS, AGGREGATED OUTPUTS, AND USER CONTENT

Data Protection Act, 2019 (Kenya) | Office of the Data Protection Commissioner

Aggregated Outputs and Research Publication

13.1 Publication of Aggregated Outputs. You acknowledge that the Platform generates Aggregated Outputs from User participation data. These may be published, distributed, sublicensed, and used in Econsult Africa's research, advisory, and commercial economic intelligence products and services.

13.2 Anonymisation. Aggregated Outputs published externally will not identify individual Users, consistent with data protection principles under the Data Protection Act, 2019 (Kenya).

Privacy and Personal Data

13.3 Privacy Notice. Econsult Africa processes personal data in accordance with its Privacy Notice (available on the Platform) and the Data Protection Act, 2019 (Kenya). By using the Platform, you consent to collection, processing, and use of your personal data as described.

13.4 Data protection by design. Econsult Africa implements data minimisation, encryption, pseudonymisation, and access controls appropriate to the nature and sensitivity of data processed.

13.5 Data protection rights. Under the Data Protection Act, 2019 (Kenya), you have the right to: access your personal data; correct inaccurate data; request erasure (subject to legal retention obligations); object to processing; and lodge a complaint with the Office of the Data Protection Commissioner. Contact: legal@econsult.africa.

13.6 Cross-border processing. Personal data may be processed across borders. Where required, Econsult Africa implements appropriate safeguards for cross-border transfers under the Data Protection Act, 2019 (Kenya).

User Content

13.7 License grant. If the Platform permits you to submit User Content, you grant Econsult Africa a worldwide, non-exclusive, royalty-free, sublicensable, perpetual license to host, store, reproduce, publish, adapt, distribute, and create derivative works from your User Content for Platform operation, research, and economic intelligence purposes.

13.8 Your representations. You represent and warrant that you own or have all necessary rights to submit User Content, that it does not infringe any third-party rights, and that it does not violate applicable law.

14. INTELLECTUAL PROPERTY

14.1 Econsult Africa's intellectual property. The Platform — including its software, algorithms (including the APM), analytics methodologies, branding, trade names ('Econsult Africa,' 'Forecast Arena,' 'The Economic Whisperer'), logos, user interfaces, scoring systems, Aggregated Outputs, probability data, and research frameworks — is owned by or licensed to Econsult Africa and is protected by the Industrial Property Act (Cap. 509) and the Copyright Act (Cap. 130, Laws of Kenya).

14.2 Aggregated Output ownership. Aggregated probability signals, sentiment indices, and forecast data produced by the Platform are proprietary information products of Econsult Africa. By submitting a Forecast, Users grant Econsult Africa a perpetual, irrevocable, worldwide, royalty-free licence to use, aggregate, anonymise, publish, and commercialise their Forecast data. Individual Forecasts will not be attributed to specific Users without consent.

14.3 Limited license. Econsult Africa grants you a limited, revocable, non-exclusive, non-transferable license to access and use the Platform for its intended research participation and economic intelligence purposes.

14.4 Restrictions. You may not copy, scrape, reverse engineer, decompile, or create derivative works from protected Platform elements without authorisation. Unauthorised reproduction may constitute copyright infringement under the Copyright Act (Cap. 130, Laws of Kenya).

15. SUSPENSION, CANCELLATION, AND TERMINATION

15.1 Termination by User. You may close your account at any time by contacting support@econsult.africa. Any available Wallet balance will be processed for withdrawal, subject to KYC and AML requirements.

15.2 Termination by Econsult Africa. Econsult Africa may suspend, restrict, cancel, or terminate your account where it reasonably believes it is necessary for compliance, fraud prevention, sanctions screening, dispute handling, integrity investigation, or protection of Users or the public interest.

15.3 Effect of termination. Upon termination, your right to access the Platform ceases immediately. Econsult Africa may retain Aggregated Outputs and anonymised data. Sections 2, 7, 9, 13, 14, 16, 17, 18, 19, and 20 survive termination.

15.4 No liability for good-faith enforcement. Econsult Africa shall not be liable for losses arising from good-faith enforcement actions under these Terms, including cancellations, reversals, clawbacks, and account restrictions.

16. DISCLAIMERS

16.1 Research nature; no advice. The Platform provides economic intelligence, research outputs, and Aggregated Outputs and enables voluntary research participation. Nothing on the Platform is financial, investment, legal, tax, accounting, or any other form of regulated professional advice.

16.2 No guarantees of accuracy or availability. Forecast outcomes, consensus indicators, and analytics may be incomplete, delayed, revised, or incorrect. The Platform is provided on an 'as is' and 'as available' basis without warranties of any kind.

16.3 Third-party services. Econsult Africa is not responsible for errors, delays, or outages in third-party data sources, payment processors, or network services.

16.4 Modification and discontinuation. The Platform may be modified, updated, interrupted, or discontinued for operational, compliance, technical, or commercial reasons, with or without notice.

17. LIMITATION OF LIABILITY

17.1 Exclusion of indirect losses. To the maximum extent permitted by applicable law, Econsult Africa shall not be liable for any indirect, consequential, special, incidental, punitive, or exemplary damages, including loss of profits, revenue, goodwill, data, or business opportunity.

17.2 Aggregate liability cap. Econsult Africa's total aggregate liability shall not exceed the greater of: (a) the total Platform Fees paid by you in the twelve (12) months preceding the event; or (b) KES 10,000 / USD 100, whichever is greater.

17.3 Essential bargain. You acknowledge that the disclaimers and limitations in Sections 16 and 17 are a fundamental element of the basis of the bargain, and that Econsult Africa would not provide the Platform without these limitations.

17.4 Mandatory rights preserved. Nothing in these Terms excludes or limits liability that cannot be lawfully excluded under applicable mandatory law, including the Consumer Protection Act, 2012 (Kenya).

18. INDEMNIFICATION

18.1 You agree to indemnify, defend, and hold harmless Econsult Africa and its directors, officers, employees, contractors, affiliates, agents, and suppliers from and against any and all claims, demands, damages, liabilities, losses, costs, and expenses (including reasonable legal fees) arising out of or related to: (a) your breach of these Terms; (b) your User Content; (c) your misuse of the Platform; (d) your violation of applicable law, regulation, or third-party rights; (e) any false representation made by you; or (f) any third-party claim arising from your participation.

18.2 Econsult Africa reserves the right, at its own cost, to assume exclusive defence and control of any matter subject to indemnification. You agree not to settle any matter without Econsult Africa's prior written consent.

19. DISPUTE RESOLUTION

Arbitration Act (Cap. 49, Laws of Kenya) | Nairobi Centre for International Arbitration Rules

19.1 Good-faith resolution. Before initiating formal proceedings, you agree to contact Econsult Africa at legal@econsult.africa and attempt to resolve the matter informally within thirty (30) days of written notice.

19.2 Binding arbitration. Unless prohibited by applicable mandatory law, any unresolved dispute shall be referred to binding arbitration under the Arbitration Act (Cap. 49, Laws of Kenya), seated in Nairobi, under NCIA Rules, by a single arbitrator. Proceedings shall be in English. The award is final and may be entered as a judgment in any court of competent jurisdiction.

19.3 Interim relief. Nothing in this Section prevents either party from seeking interim, provisional, or injunctive relief from the High Court of Kenya or any competent court to protect rights pending arbitration.

19.4 Class action waiver. Any dispute resolution proceedings will be conducted only on an individual basis and not in a class, consolidated, or representative action.

19.5 Resolution disputes. Disputes regarding the Resolution of a specific Forecast Question must be submitted within fourteen (14) days of the Resolution announcement with supporting evidence. Econsult Africa's review outcome is final and binding, subject to manifest error.

20. GOVERNING LAW AND JURISDICTION

20.1 These Terms are governed by and construed in accordance with the laws of the Republic of Kenya, without regard to conflict-of-laws principles. Subject to Section 19, the High Court of Kenya shall have exclusive jurisdiction over disputes arising out of or relating to these Terms.

20.2 Notwithstanding Section 20.1, Econsult Africa retains the right to enforce intellectual property rights and seek injunctive relief in any jurisdiction where a User is located or where a breach is occurring.

20.3 The United Nations Convention on Contracts for the International Sale of Goods (CISG) does not apply to these Terms.

21. AMENDMENTS

21.1 Right to amend. Econsult Africa may amend these Terms to reflect changes to the Platform, risk controls, compliance posture, applicable law, or operational requirements.

21.2 Notice. Updated Terms will be posted on the Platform with an updated effective date. For material changes, Econsult Africa will endeavour to provide at least fourteen (14) days' advance notice via email or in-Platform notification.

21.3 Acceptance. Continued use of the Platform after the effective date of updated Terms constitutes acceptance. If you do not agree to amended Terms, you must discontinue use before the effective date.

22. GENERAL PROVISIONS

22.1 Severability. If any provision is held invalid, illegal, or unenforceable, the remaining provisions continue in full force. The invalid provision shall be modified to the minimum extent necessary to make it valid.

22.2 No waiver. Econsult Africa's failure to exercise or enforce any right shall not constitute a waiver of such right.

22.3 Assignment. You may not assign, transfer, or delegate these Terms without Econsult Africa's prior written consent. Econsult Africa may assign these Terms to an affiliate, successor, or acquirer without your consent.

22.4 Entire agreement. These Terms, together with all incorporated policies (including the Privacy Notice and applicable Participation Rules), constitute the entire agreement between you and Econsult Africa with respect to the Platform.

22.5 Force majeure. Econsult Africa shall not be liable for failure or delay resulting from circumstances beyond its reasonable control, including natural disasters, pandemics, war, government actions, regulatory changes, or third-party service failures.

22.6 Survival. Sections 2, 9, 13, 14, 16, 17, 18, 19, and 20 survive termination of these Terms.

22.7 Language. These Terms are drafted in English. In any conflict between an English-language version and any translation, the English-language version prevails.

22.8 Relationship of the parties. Nothing in these Terms creates a partnership, joint venture, agency, franchise, or employment relationship.

23. CLICKWRAP ACKNOWLEDGEMENT

By creating an account or submitting a Forecast Submission on Forecast Arena, you confirm that you have read, understood, and agree to these Terms of Use and the Privacy Notice, and you specifically and irrevocably acknowledge that:

- (a) Forecast Arena is an economic intelligence, sentiment aggregation, and event-contract derivatives research platform — not a gambling product, betting service, investment product, securities or derivatives exchange, deposit-taking service, or e-money facility under applicable Kenyan law or the law of any other applicable jurisdiction;
- (b) Any monetary engagement on the Platform (where enabled) constitutes participation in an event-contract mechanism designed to elicit honest, informed, analytically grounded economic forecasts through capital-commitment as a credibility signal — it is not a wager, bet, game of chance, or gambling activity, and the outcome on which a Conviction Commitment is placed is determined entirely by objective, externally verifiable data sources, not by the Platform or any random mechanism;
- (c) **Forecast Arena operates in the same regulatory category as Polymarket US** — a platform licensed by the United States Commodity Futures Trading Commission (CFTC) as a **Designated Contract Market (DCM)** under the Commodity Exchange Act, placing it in the same federal regulatory category as the Chicago Mercantile Exchange (CME) and the Intercontinental Exchange (ICE). The CFTC's DCM designation formally and bindingly classifies event-contract platforms of this type as *regulated derivatives markets*, not gambling services. Econsult Africa considers this CFTC precedent, and the equivalent DCM designation held by Kalshi, to be directly instructive as to the appropriate regulatory characterisation of Forecast Arena. **Econsult Africa is actively seeking authorisation under the Capital Markets Authority of Kenya's Regulatory Sandbox Programme** — established by the CMA's Regulatory Sandbox Policy Guidance Note (2019) — with the objective of building and operating Forecast Arena as a formally recognised event-contract derivatives platform within the Kenyan and broader African capital markets regulatory architecture. The CMA, not any gaming or betting authority, is the appropriate regulatory home for a platform of this character, and Econsult Africa is committed to full proactive engagement with the CMA to achieve that recognition;
- (d) You may receive no Accuracy-Based Recognition and, where you have made a Conviction Commitment, you may lose some or all of the capital committed;
- (e) Econsult Africa does not set odds, does not act as a bookmaker or counterparty, and does not take the opposite side of any User Forecast Submission; its revenue is entirely outcome-independent;
- (f) Outcomes are determined using objective, externally verifiable Resolution Sources, and Econsult Africa's Resolution determinations are final except in cases of manifest error;
- (g) Econsult Africa may require identity verification and may restrict, cancel, reverse, or suspend participation to protect compliance, data integrity, Platform integrity, and User safety;
- (h) The Platform publishes Aggregated Outputs derived from User participation, which may be used in Econsult Africa's research and commercial economic intelligence products; and
- (i) You have assessed and are satisfied as to the legal status of your participation on the Platform in your jurisdiction of residence.

24. CONTACT

Should you have any questions, please reach out to info@econsult.africa

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Nairobi, Kenya

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